

United States District Court for the Northern District of West Virginia

Asterglen Freight Software, Inc. v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC

Notice of Appeal

Civil Action No. SYN-NDWV-25-CV-0618 District ECF No. 62 — Filed March 3, 2026

Notice is given that Plaintiff Asterglen Freight Software, Inc. appeals to the United States Court of Appeals for the Fourth Circuit from the partial judgment entered on February 4, 2026 at District ECF No. 61; the order entered the same day granting Asterglen's motion under Federal Rule of Civil Procedure 54(b) and directing entry of that judgment at District ECF No. 60; and the January 12, 2026 memorandum opinion and order at District ECF No. 55 insofar as it granted Copper Kestrel Logistics, LLC summary judgment and dismissed Count I with prejudice.

Asterglen is the appellant. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC are appellees under the district-court caption. The appeal is directed only to the disposition of Count I and the orders antecedent to that disposition. Count II against Meridian and Copper's amended counterclaim remain pending in the district court.

This notice identifies the Fourth Circuit as the court to which the appeal is taken. It does not seek review of any unentered decision, any future ruling on the pending claims, or any matter outside the existing docket. Asterglen requests that the district clerk process and transmit the notice in accordance with the applicable appellate rules.

Designated judgment and timing statement

The designated judgment was entered as a separate document on February 4, 2026. This notice is filed on March 3, 2026, within the ordinary thirty-day period measured from that entry date; under that conditional premise, the ordinary deadline is March 6, 2026. Asterglen states the dates to permit accurate docket administration. It does not contend that filing within the time period independently establishes that the partial judgment is final for purposes of appellate jurisdiction.

The February 4 order granted Asterglen's Rule 54(b) motion and directed entry of judgment, but the sufficiency of the order and judgment under Rule 54(b) is a matter for jurisdictional review. Asterglen preserves its position that the request in its motion, the grant, and the separate judgment support review. It also preserves any argument concerning the effect of the language actually entered. No party's contrary position is conceded by this notice.

The January 12 order resolved Count I but left other claims pending. Asterglen has filed no motion listed in Federal Rule of Appellate Procedure 4(a)(4) that it contends suspends the notice period, and it relies on no extension or reopening order. The notice is intended to protect appellate rights under the stated dates while leaving the Fourth Circuit to determine its own jurisdiction.

Record, service, and signature

Asterglen anticipates that the record will consist of the district-court papers and exhibits, the relevant orders and judgment, this notice, and a certified copy of the docket entries. The summary-judgment and Rule 54(b) motions were decided on written submissions. Asterglen is not aware of a hearing transcript necessary to the designated appeal and will file the required transcript statement or order form within the applicable period.

The district clerk may transmit this notice and the docket information under the existing caption. Asterglen will file the Fourth Circuit's docketing statement and other initial documents after the appellate docket is opened. The notice does not designate materials from outside this action and does not alter the status of Count II or Copper's amended counterclaim in this Court.

Respectfully submitted on March 3, 2026, Counsel for Asterglen Freight Software, Inc.

I certify that this Notice of Appeal was filed through the Court's electronic filing system on March 3, 2026. Electronic notice was sent that day to counsel of record for Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC. The filing contains the caption, identifies Asterglen as the appealing party, designates the judgment and related orders, and names the United States Court of Appeals for the Fourth Circuit as the destination court.